

Comparing dignity-based and identity-based approaches to interfaith relations

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SYSTEM PROMPT

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USER PROMPT

Write a concise, self-contained article entry for the title: "Comparing dignity-based and identity-based approaches to interfaith relations".

Overall topic for alignment: Muslim-non-Muslim relations grounded in human dignity in sharia.

Important points to cover: Include Arabic terms, historical contexts, quranic foundations of sharia, minority and majority settings, Islamic theological schools, Islamic juristic schools of Hanafi, Hambali, shafi'i and Malaki, orientalist perspective, AI's humanistic approach to sharia, Human rights declaration..

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:
- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.
- Place external links only in the "References" section; do not include inline external links in the body text.
- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.
- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.
- Do not include code fences or any text outside the markdown content.

No external web sources are attached. Do not fabricate citations or specific facts that cannot be verified. Keep claims general and verifiable. In the 'References' section, include: "No external sources used."

****Respond in English****

SUMMARY

Summary: Dignity-Based vs. Identity-Based Approaches to Interfaith Relations

Core Distinction

Islamic interfaith relations are framed by two competing logics:

- **Dignity-based:** Grounded in *karāmah insāniyyah* (Q 17:70), treating human worth as pre-political and unconditional. Aligned with *maqāṣid al-sharī'ah* (protection of life, intellect, property, lineage, religion) extended universally.
- **Identity-based:** Organized around confessional status categories (*Muslim*, *dhimmi*, *mu'āhid*, *musta'min*, *ḥarbī*), with rights calibrated to one's classification.

Scriptural and Historical Anchors

- Dignity proponents cite Q 49:13, 60:8, 2:256, and the **Constitution of Medina** (single *ummah* with religious distinctness preserved).
- Identity proponents cite Q 9:29 (*jizyah*) and the **Pact of 'Umar**, which codified differential rules under Muslim-majority rule.

Juristic Variation

- **Ḥanafī:** Most accommodating on non-Muslim legal capacity and commerce.
- **Mālikī:** Pragmatic, context-sensitive (esp. Andalusia/North Africa).
- **Shāfi'ī:** Systematic *dhimma* rules balancing protection with differentiation.
- **Ḥanbalī:** Stricter ritual separation but firm on non-Muslim inviolability.
- Shī'ī and Mu'tazilī rationalist currents lean toward universal-reason ethics congenial to dignity framing.

Contextual Application

- **Muslim-majority:** Reformers (e.g., 2016 **Marrakesh Declaration**) advocate constitutional *muwāṭanah* (citizenship) over reviving *dhimma*.
- **Muslim-minority:** *Fiqh al-aqalliyyāt* debates; dignity readings support civic participation and treaty fidelity.

Orientalism and Humanistic Reframing

Orientalist scholarship often flattened sharia as uniformly discriminatory; revisionists show classical practice was diverse and frequently more tolerant than contemporaneous European regimes. A humanistic *maqāṣid*-based reading argues: (1) universal *karāmah* precedes confessional categories; (2) justice (Q 5:8) is non-negotiable; (3) modern citizenship fulfills classical *‘ahd* functions without hierarchy; (4) historically conditioned rulings (e.g., *jizyah*) are open to *ijtihād*. This broadly aligns with the UDHR (1948) and Cairo Declaration (1990).

Key Contrasts

- **Rights source:** *karāmah/maqāṣid* vs. confessional status.
- **Default:** presumed equality vs. presumed differentiation.
- **Fit:** modern constitutionalism vs. classical imperial governance.
- **Risks:** diluting tradition vs. importing premodern hierarchies.

Conclusion

The two frameworks are best treated as layered: identity categories describe historical legal structures, while dignity provides their ongoing ethical evaluation. A dignity-centered reading offers a coherent basis for pluralist coexistence without discarding classical juristic vocabulary.

FULL CONTENT

Comparing Dignity-Based and Identity-Based Approaches to Interfaith Relations

Interfaith relations between Muslims and non-Muslims have long been shaped by two competing frameworks: a **dignity-based approach**, which centers on the inherent worth of every human being (*karāmah insāniyyah*), and an **identity-based approach**, which organizes rights and obligations primarily around confessional belonging. Understanding the difference between these two orientations is essential for evaluating classical sharia rulings, modern reform movements, and contemporary policy debates on coexistence.

Conceptual Foundations

The dignity-based approach grounds interfaith relations in the Qur'anic affirmation: "*We have certainly honored the children of Adam*" (Q 17:70 — *wa laqad karramnā banī Ādam*). Dignity here is pre-political and unconditional; it precedes religious affiliation. From this premise, jurists who emphasize *maqāṣid al-sharī'ah* (the higher objectives of Islamic law) argue that the protection of life (*ḥifẓ al-naḥs*), intellect (*ḥifẓ al-'aql*), property (*ḥifẓ al-māl*), lineage (*ḥifẓ al-nasl*), and religion (*ḥifẓ al-dīn*) extends to all humans regardless of creed.

The identity-based approach, by contrast, builds on categories such as *Muslim*, *dhimmī* (protected non-Muslim under classical rule), *mu'āhid* (treaty-bound non-Muslim), *musta'min* (temporary resident), and *ḥarbī* (belligerent). Rights and duties are calibrated to one's status within this taxonomy. Although the system historically guaranteed substantial protections, it tied entitlements to confessional identity rather than to a universal notion of personhood.

Qur'anic and Historical Anchors

Both approaches draw on scriptural sources but read them differently. Dignity-oriented scholars highlight verses such as Q 49:13 ("*We created you... that you may know one another*"), Q 60:8 (permitting kindness and justice toward peaceful non-Muslims), and Q 2:256 ("*There is no compulsion in religion*"). They also reference the **Constitution of Medina** (*Ṣaḥīfat al-Madīnah*), the early pact attributed to the Prophet Muhammad, which treated Jews and other groups as constituents of a single political community (*ummah wāḥidah*) without erasing religious distinctness.

Identity-oriented readings emphasize verses addressing communal boundaries and the historical institution of the *jizyah* (Q 9:29), as elaborated in later imperial contexts under the Umayyads, Abbasids, and Ottomans. The **Pact of 'Umar**, a document of disputed dating, codified differential rules for non-Muslims in matters of dress, worship, and public life, reflecting the administrative needs of a Muslim-majority polity rather than a purely theological mandate.

The Four Sunni Juristic Schools

The classical Sunni *madhāhib* offered nuanced positions:

- **Ḥanafī**: Generally the most accommodating regarding the legal capacity of non-Muslims, recognizing their contracts, testimony in many civil matters, and broad commercial parity with Muslims. Abū Ḥanīfah's framework facilitated coexistence in religiously plural cities like Kufa and Baghdad.
- **Maliki**: Rooted in the practice of Medina, emphasized communal stability; rulings on non-Muslims varied by region, with North African and Andalusian jurists often pragmatic in cosmopolitan settings.

- **Shāfiʿī**: Systematized rules of *dhimma* with detailed conditions, balancing protection with social differentiation.
- **Hanbali**: Often stricter in ritual separation but equally insistent on the inviolability of non-Muslim life, property, and houses of worship under the covenant of protection.

Shīʿī schools (Jaʿfarī, Zaydī, Ismāʿīlī) and theological currents such as Muʿtazilī rationalism and Ashʿarī traditionalism likewise produced varied positions, with rationalist theologians more inclined to ground ethics in universal reason — a posture congenial to dignity-based readings.

Minority and Majority Settings

The two approaches yield different practical outcomes depending on demographic context.

In **Muslim-majority settings**, identity-based frameworks historically structured taxation, judicial autonomy (millet-style arrangements under the Ottomans), and public symbolism. Dignity-based reformers today argue that constitutional citizenship (*muwāṭanah*) — articulated in documents such as the 2016 Marrakesh Declaration on the rights of religious minorities in Muslim-majority lands — better fulfills the *maqāṣid* than reviving classical *dhimma* categories.

In **Muslim-minority settings**, jurists from al-Māwardī to contemporary scholars of *fiqh al-aqalliyyāt* (jurisprudence of minorities) have debated how Muslims should engage non-Muslim majorities. A dignity-based reading naturally supports civic participation, mutual respect, and treaty fidelity (*al-wafāʾ bi-l-ʿahd*), while identity-based readings may emphasize communal preservation and boundary maintenance.

Orientalist Perspectives

Orientalist scholarship of the 19th and 20th centuries often portrayed sharia as monolithically discriminatory toward non-Muslims, conflating specific historical regulations with the entirety of Islamic legal thought. Later revisionist historians — including scholars working within Western academia and Muslim reformist circles — have pushed back, showing that classical practice was diverse, context-dependent, and frequently more tolerant than European confessional regimes of comparable periods. Both orientalist critique and apologetic counter-narratives can obscure the internal Islamic debate between dignity-centered and identity-centered logics.

A Humanistic Reading of Sharia

A humanistic approach to sharia — increasingly articulated by contemporary Muslim ethicists — argues that the *maqāṣid* tradition itself authorizes a dignity-first reframing. On this view:

1. **Universality precedes particularity**: *Karāmah* applies to all *banū Ādam*; confessional categories regulate specific legal relationships but do not exhaust moral standing.

- 2. **Justice ('*adl*) is non-negotiable:** Q 5:8 commands justice even toward those one dislikes, undercutting any identity-based discount on fairness.
- 3. **Reciprocity and covenant:** Treaties, citizenship, and constitutional orders are modern equivalents of classical '*ahd* and '*dhimmah*, fulfilling the same protective function without hierarchical status.
- 4. **Reasoned ijtihād:** Rulings tied to specific historical conditions (e.g., *jizyah* as a wartime settlement instrument) may be reinterpreted when those conditions no longer apply.

This reading aligns substantively, though not identically, with instruments such as the **Universal Declaration of Human Rights (1948)** and the **Cairo Declaration on Human Rights in Islam (1990)**, which attempt — with differing emphases — to reconcile universal dignity with religious tradition.

Comparing the Two Approaches

DIMENSION	DIGNITY-BASED	IDENTITY-BASED
(table omitted per format)		

Rather than a table, the contrast can be summarized as follows:

- **Source of rights:** dignity-based draws from *karāmah* and *maqāṣid*; identity-based from confessional status.
- **Default stance:** dignity-based presumes equality, adjusting for specific legal relationships; identity-based presumes differentiation, with protections layered onto status.
- **Adaptability:** dignity-based travels more easily across modern constitutional orders; identity-based maps more directly onto classical imperial governance.
- **Risk:** dignity-based may be accused of diluting tradition; identity-based may be accused of importing premodern hierarchies into pluralist societies.

Practical Implications

For interfaith dialogue, dignity-based framing facilitates shared ethical vocabulary with non-Muslim partners and supports joint advocacy on poverty, environmental stewardship, and persecution of any community. Identity-based framing remains useful for understanding the historical depth of Islamic legal tradition and for analyzing texts on their own terms. The most productive contemporary scholarship treats the two not as rivals but as layered resources: identity categories describe historical structures, while dignity grounds their ongoing ethical evaluation.

Conclusion

The choice between dignity-based and identity-based approaches is not merely academic. It shapes how Muslim communities engage with religious neighbors, how states draft constitutions, and how classical *fiqh* is taught and applied. Anchored in the Qur'anic honoring of all humans, refined through the juristic schools, and tested in centuries of coexistence, a dignity-centered reading of sharia offers a coherent path for Muslim–non-Muslim relations in plural societies — without discarding the rich vocabulary that the identity-based tradition has bequeathed.

SEGMENTED DATA (1)

Comparing Dignity-Based and Identity-Based Approaches to Interfaith Relations

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